

The Urban Land (Ceiling And Regulation) Rules, 1976

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[The Urban Land \(Ceiling And Regulation\) Rules, 1976](#)

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[The Urban Land \(Ceiling And Regulation\) Rules, 1976](#)

[Published vide Notification in the Gazette of India, Extra, Part 2, Section 3\(i\), dated 17th February, 1976 1749.](#)

[G.S.R. 85 \(E\), dated 17 February, 1976. - In exercise of the powers conferred by sub-section\(2\) of Section 46 of the Urban Land \(Ceiling and Regulation\) Act, 1976 \(](#)

[33 of 1976](#)

[\), the Central Government hereby makes the following rules namely:-](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These rules may be called the Urban Land \(Ceiling and Regulation\) Rules, 1976.](#)

(2)

They shall come into force on the date of their publication in the Official Gazette.

Note. - The rules came into force, w.e.f. 17th Feb. 1976, the date on which they were published in the Government Gazette.

2.

Definition.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Urban Land (Ceiling and Regulation) Act, 1976 (33 of 1976

);

(b)

"Form" means a form as given in the First Schedule;

(c)

"Schedule" means a schedule appended to these rules;

(d)

"Section" means a section of the Act.

3.

Statement by persons holding excess lands.

- Every statement under Section 6 shall be filed within one hundred and twenty, days from the commencement of the Act and such statement shall contain the particulars specified in Form I :

Provided that where any vacant land exempted by clause (iv) of sub-section (1) of Section 19 or sub-section (1) of Section 20 ceases to be so exempted, the statement referred to in sub-section (1) of Section 6 in relation to such vacant land shall be filed within ninety days from the date on which such vacant land ceases to be so exempted.

Explanation.- In this rule, "commencement of the Act" shall have the meaning assigned to the expression "commencement of this Act" in the Explanation to sub-section (1) of Section 6.

4.

Intimation by person holding vacant lands equal in extent within the jurisdiction of two or more competent authorities.

- The intimation to be sent to the State Government or the Central Government under sub-section (2) or sub-section (3), as the case may be, of Section 7 shall be in Form II.

5.

Particulars to be contained in draft statement as regards vacant lands and manner of service of the same.

(1)

Every draft statement prepared under sub-section (1) of Section 8 shall contain the particulars specified in Form III.

(2)

(a)

The draft statement shall be served, together with the notice referred to in sub-section (3) of Section 3, on-

(i)

the holder of the vacant lands, and

(ii)

all other persons, so far as maybe known, who have, or are likely to have, any claim to, or interest in the ownership or possession or both, of the vacant lands-

by sending the same by registered post addressed to the person concerned---

(i)

in the case of the holder of the vacant lands, to his address as given in the statement filed in pursuance of sub-section (1) of Section 6, and

(ii)

in the case of other persons at their last known addresses.

(b)

Where the draft statement and the notice are returned as refused by the addressee, the same shall be deemed to have been duly served on such person.

(c)

Where the efforts to serve the draft statement and the notice, on the holder of the vacant lands or, as the case may be, any other person referred to in clause (a), in the manner specified in that clause is not successful for reasons other than the reason referred to in clause (b), the draft statement and notice shall be served by affixing copies of the same in a conspicuous place in the office of the competent authority and also upon some conspicuous part of the house (if any) in which the holder of the vacant lands or as the case may be, the other person is known to have last resided or carried on business or personally worked for gain.

6.

Manner of publication of notification giving particulars of vacant lands.

- The notification under sub-section (1) of Section 10 shall be published for the information of the general public, in addition to the publication to be made in the Official Gazette of the State concerned, also in the following manner, namely:-

(a)

by affixing copies of the notification in a conspicuous place in the office of the competent authority; and

(b)

by publishing the same in two newspapers having circulation in the locality where the vacant lands are situated :

Provided that at least one of the newspapers in which the notification is published shall be in the language generally spoken by the people in the locality where the vacant lands are situated.

7.

Time within which competent authority shall dispose of cases under sub-section (9) of Section 11.

- Every case for determination of the amount to be paid to the person or persons having any interest in any vacant land shall be disposed of by the competent authority within one year from the date on which such vacant land is deemed to have been acquired by the State Government.

8.

Particulars to be mentioned in statements by persons acquiring vacant lands by inheritance, etc., on or after the commencement of the Act.

- Every statement under sub-section (1) of Section 15 shall contain the particulars specified in Form N.

9.

Particulars to be mentioned in statements under sub-section (1) of Section 16.

- Every statement under sub-section (1) of Section 16 shall contain the particulars specified in Form I.

10.

Times during which the competent authority or any person acting under the orders of such authority may enter upon any vacant land under Section 17.

- The competent authority or any person acting under the orders of the competent authority may enter upon any vacant land or any other land on which there is a building for the purposes referred to in the section between sunrise and sunset.

11.

The time within which, and form in which, declaration under sub-section (1) of Section 21 shall be made.

- Every declaration under sub-section (1) of Section 21 by a person holding vacant land shall be made within ninety days from the commencement of the Act and shall be in Form V:

Provided that-

(a)

where, on or after the commencement of the Act, any person acquires any vacant land in the manner provided in sub-section (1) of Section 15, and on such acquisition, the extent of the land so acquired together with the extent of the vacant land, if any, already held by him exceeds in the aggregate the ceiling a.,it. then, the time within which such person may file the declaration referred to under sub-section (1) of Section 21 shall be ninety days from the date on which he acquires such vacant land in the manner aforesaid;

(b)

where any vacant land held by any person and exempted by clause (iv) of sub-section (1) of Section 19 or sub-section (1) of Section 20 ceases to be so exempted and as a consequence thereof the extent of such land, together with the extent of the vacant land, if any, already held by him, exceeds in the aggregate the ceiling limit, then the time witi.. which

such person may file the declaration referred to under sub-section (1) of Section 21 shall be ninety days from the date on which such vacant land ceases to be so exempted.

12.

Particulars in a statement under sub-section (1) of Section 22.

- Every statement under sub-section (1) of Section 22 shall contain the particulars specified in Form VI.

13.

Form of and particulars in an application under sub-section (1) of Section 24.

- Every application under sub-section (1) of Section 24 shall be made in Form VII and shall contain the particulars specified therein.

14.

Form of application under sub-section (2) of Section 27.

- Every application under sub-section (2) of Section 27 shall be in Form VIII.

15.

Supply of certified copies.

- The competent authority may supply a party to any proceeding before it with certified copies of any document in relation to, or produced, in that proceeding on an application made therefor and on payment of such fees as are specified in the Second Schedule in relation to that application.

16.

Court fees.

- Every application, appeal or other proceeding under the Act, mentioned in the Second Schedule shall bear court-fee stamps of the value specified against each such application, appeal or other proceeding in Column 3 of the said Schedule.

THE FIRST SCHEDULE

Form I

(To be furnished in triplicate)

(See Rules 3 and 9)

Statement Under Sub-Section (1) Of Section 6

Part A

Abstract of the total vacant land held by a person

1. Name and address of the person filing the statement.

2. Whether the statement relates to an individual a family, a firm, a company or an association or body of individuals whether incorporated or not.

3. The urban agglomeration in which the vacant land is situated:

(a)

The urban agglomeration in which the major part of the vacant land is situated.

(b)

The urban agglomeration/urban agglomeration in which the other portions of the vacant land are situated.

4. The extent of each of the vacant lands referred to above and its location.

5. State if the vacant land is

(i)

only a vacant land,

(ii)

land with a building, or

(iii)

land with a building with a dwelling unit therein.

6. Have you made any transfer of any vacant land held by you as provided in Section 4 of the Act after the 17th February, 1975 and before the 28th January, 1976? If so, the extent, location, mode and other details thereof (Applicable only where the land is situated in a State to which the Act applies in the first instance).

7. Have you made any transfer of any vacant land held by you as provided in Section 5 (1) of the Act during the period beginning with the 28th January, 1976, and ending with the commencement of the Act? If so, the extent, location, mode and other details thereof (Applicable only where the land is situated in a State to which the Act applies in the first

instance).

9. Is any exemption from the ceiling limit being claimed or sought by you in respect of any vacant land held by you under Section 19 or 20? If so, details thereof.

10. (a) Have you made any declaration under sub-section (1) of Section 21 in respect of any vacant land? If so, give particulars of that declaration.

(b)

Have you attached a copy of the declaration to this statement?

Part B

Statement Under Sub-Section (1) Of Section 6 Of The Act

1. Name and address of the person filing the statement.

2. Whether the statement relates to an individual, a family, a firm, a company or an association or body of individuals, whether incorporated or not?

3. Name and address of the person by whom the land is owned or held.

4. (a) If the person specified in item 3 is mentally incapacitated from attending to his affairs, is the person specified in Item 1

(i)

his guardian; or

(ii)

competent to act on his behalf?

(b)

If the return relates to a family, is the person specified in item 1, the husband/wife/other person competent to act on behalf of husband or wife or both.

(c)

In the case of any other person, is the person referred to in Item 1 competent to file the statement? If not, what is the nature of his authority to file the statement?

5. If the return relates to a family, particulars of the members of the family.

(i)

Husband Name, Date of Birth, Age

(ii)

Wife

(iii)

Unmarried minor children

1.

2.

6. Have particulars of all vacant lands, land with building, land with building proposed to be demolished and agricultural land owned, or possessed as owner or tenant or a mortgagee or under an irrevocable power of attorney or under a hire purchase agreement or in any other capacity in the State, including lands transferred after the 17th February, 1975 and lands exempted under Section 19, by the person to whom the statement relates been furnished in Annexure A?

7. (a) Is there any encumbrance on the lands included in Annexure A and, if so,

(b)

have particulars of the encumbrances been furnished in Annexure B?

8. (a) Is there any litigation pending in respect of any land included in Annexure A and, if so,

(b)

have particulars of the litigation been furnished in Annexure C?

9. (a) Is there any arrears of land revenue or other amounts recoverable as arrears of land revenue or attachment or restraint on alienation in respect of any land included in Annexure A and, if so,

(b)

have particulars of such arrears and of the proceedings pending for collection of such arrears or the particulars of such attachment or restraint on alienation been furnished in Annexure D?

10. (a) Is any land included in Annexure A in the possession of other persons by way of mortgage or otherwise and, if so,

(b)

have particulars of such land been furnished in Annexure E?

11. (a) Is any land in respect of which exemption under Section 19 of the Act is claimed included in Annexure A, and, if so,

(b)

have particulars of such land been furnished in Annexure F?

12. (a) Is any land in respect of which exemption is sought under Section 20 of the Act included in Annexure A and, if so,

(b)

have particulars of such land been furnished in Annexure G?

13. Have you filed a declaration under sub-section (1) of Section 21? If so, give particulars of the declaration and attach a copy of the same.

14. Is there any other person interested in such land and, if so, have the name/names and address/addresses and nature of interest of such person/persons indicated in Annexure A?

15. (Applicable only where the land is situated in a State to which the Act applies in the first instance).

(a)

Whether any vacant land included in Annexure 'A' has been transferred by you by way of sale, mortgage, gift, lease or otherwise

(i)

after the 17th February, 1975 and before the 28th January, 1976;

(ii)

during the period beginning with the 28th January, 1976 and ending with the commencement of the Act, and if so,

(b)

have particulars of each such transaction and the land or interest involved in such transaction been furnished in Annexure H?

16. Have the particulars of land which is desired to be retained and the land which is proposed to be surrendered been furnished in Annexure I?

I hereby declare that to the best of my knowledge and belief the information furnished in this Form and in Annexures A to I is the full and complete information of the entire holding of the person specified in Item 3 within the State(s) of.....and that the said person does not own or hold any other land either individually or jointly with others within any other State. In case any further clarification on any item is required, I shall furnish the same.

Signature of the person furnishing the statement.

Place:

Date:

To:

The Competent Authority.

ANNEXURE A

Particulars of all vacant lands, land with building, land with building, propose to be demolished and agriculture land owned or possessed as owner or tenant or mortgaged or under an irrevocable power of attorney or under a hire purchase agreement or in any other capacity including lands transferred after the 17th February, 1975, by the person concerned.

S1.No.

State

District

Taluk

Village

Survey

number and sub-division number or other identification number

given for revenue purposes

Class

of land i.e. vacant land/land with building/agricultural land

Extent

in hectares and square meters

How

acquired

Approved

land use

Value

in Rs.

In

the case of land with building the nature of building: (i) Whether residential or non-residential or Group housing building, (ii) area occupied by that building and the area allowed for convenient enjoyment of the building; (iii) whether single storeyed or multi storeyed

Nature

of interest in the land

Names

and addresses of other persons if any, having interest in such lands and the nature

of

such interest

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

Section I : Land held as owner.

Section II : Land held as tenant.

Section III : Land held as mortgagee.

Section IV : Land held under an irrevocable power of attorney.

Section V : Land held under a hire purchase agreement.

Section VI : Land held in any other capacity.

Section VII : The right or interest of the person in land held by any firm or unincorporated association of individuals on the basis of his share in such firm or association of individuals and the particulars of land held by such firm or association of individuals.

Section VIII : Share of the person in the land held by a private trust, if he is a beneficiary of the private trust and his income from the private trust and the particulars of land held by the private trust.

Section IX : Share of the person in the land held by a Hindu undivided family, if he is a member of the Hindu undivided family and the particulars of the land held by the Hindu undivided family.

Section X : Share of the person in the land held by a housing co-operative society and the particulars of land held by the housing co-operative society.

Note:-(1) The particulars should be furnished under different sections as shown above.

(2)

If the land for which particulars are furnished is not a registered sub-division, boundaries of it for easy identification should be mentioned against each Serial No. in the remarks column.

(3)

A plan showing the location of the land should be furnished.

(4)

Attested copies of documents proving the title to the land should be attached.

Place:

Date:

Signature of the person furnishing the statement

ANNEXURE B

Particulars of encumbrances on the land included in Annexure A (Details of lands mortgaged to Government/Co-operative Societies and other bodies or corporation as security for loans also should be shown in this Annexure)

Sl.

No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number

given for revenue purposes

Extent

in hectares and square metres

Particulars

of encumbrances such as the names and addresses of the creditors

details of amount and document creating encumbrance

Remarks

1

2

3

4

5

6

7

8

9

Place:

Date:

Signature of the person furnishing the statement

Annexure C

Particulars of any pending litigation in respect of the land included in Annexure A.

Sl. No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number

given for revenue purposes

Extent in

hectres and square metres

Particulars

of the litigation pending, the case number with the year, the name
of the court and the names of parties.

Remarks

1

2

3

4

5

6

7

8

9

Place:

Date:

Signature of the person furnishing the statement

ANNEXURE D

Particulars of arrears of land revenue and other amounts recoverable as arrears of land revenue or attachment or
restrain on alienation in force in respect of land include in Annexure A.

Sl. No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number
given for revenue purposes

Extent in

hectres and square metres

Amount of

arrears Rs. P.

Particulars

of proceedings pending for collection of arrears of land revenue

Particulars

of attachment.

Particulars

of restraint on alienation

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

Place:

Date:

Signature of the person furnishing the statement

ANNEXURE E

Particulars where the land or any building in the land is in the possession of others by way of lease or mortgage or otherwise.

Sl. No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number
given for revenue purposes

Extent in

hectres and square metres

Name and

address of the person in possession

The nature

of the possession with details of documents under which the person
possess including the period of the lease or other arrangement
under which the person possesses

Remarks

1

2

3

4

5

6

7

8

9

10

Place:

Date:

Signature of the person furnishing the statement

ANNEXURE F

Particulars of land in respect of which exemption under Section 19 of the Act is claimed.

Sl. No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number
given for revenue purposes

Extent in

hectres and square metres

Purpose

for which the land is now being used and from what date

Provision

in Section 19 under which exemption is claimed

Reasons

for claiming such exemption

Remarks

1

2

3

4

5

6

7

8

9

10

11

Place:

Date:

Signature of the person furnishing the statement

ANNEXURE G

Particulars of land for which exemption has been sought under Section 20 of the Act.

Sl. No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number
given for revenue purposes

Extent in

hectres and square metres

Purpose

for which exemption is sought, and particulars of application, if
an, filed for such exemption

1

2

3

4

5

6

7

8

Place:

Date

Signature of the person furnishing the statement

ANNEXURE H

Particulars of land or interest which have been disposed of on or after the 17th February,
1975/28-1-1976/Commencement of the Act

Sl. No.

State

District
Taluk
Village
Survey
number and sub-division number of other identification number
given for revenue purposed
Extent in
hectres and square metres
How
disposed of
To whom
disposed of and his address
Reason for
disposal
Date of
disposal, No and year of the document, the name of the
sub-registry office
If by way
of gift, the name (of person) and the address to whom the gift was
given
Remarks

1
2
3
4
5
6
7
8
9
10
11
12
13
Place:
Date:
Signature of the furnishing the statement
ANNEXURE I
Particulars of land desired to be retained and particulars of land proposed to be surrendered
SECTION (I)

Land Desired To Be Retained
Sl. No.
State
District
Taluk
Village
Survey
number and sub-division number of other identification number
given for revenue purposes
Extent in
hectres and square metres

Whether
mortgaged to Government or Co-operative Societies or other bodies
or Corporation as security for loan

Remarks

1
2
3
4
5
6
7
8
9

Place:

Date:

Signature of the furnishing the statement

SECTION (2)

Lands Proposed To Be Surrendered

Sl. No.

State

District

Taluk

Village

Survey

number and sub-division number of other identification number
given for revenue purposes

Extent in

hectres and square metres

Whether

mortgaged to Government or Co-operative Societies or other bodies
or Corporation as security for loan

Remarks

1
2
3
4
5
6
7
8
9

FORM II

(See Rule 4)

[Intimation to State Government/Central Government, regarding filing of statement, under sub-sections (2)/(3) of Section
7]

To

The Secretary to the Government of

...../India

.....Department

..... Place

Sir,

I am to inform you that I held vacant land situated within the jurisdiction of the following competent authorities within the State/States of.....I have already filed a statement (copy enclosed) under sub-section (2) of Section 6 before the competent authority (indicate which competent authority).

I request the State Government/Central Government to determine the competent authority before which subsequent proceedings under the Act shall be taken to the exclusion of the other competent authority or authorities.

Yours faithfully,

(Name of the holder of the vacant land)

Place

Date

FORM III

(See Rule 5)

Draft Statement prepared by the competent authority of lands held by

General

(a)

Number assigned to the case by the competent authority.

(b)

Name and address of the person who filed statement.

(c)

To which person does the draft statement relate?

Part A

[Description and other details of the person to whom this draft statement relates (Figures in Columns 4 to 9 to be given in hectares and square metres).]

1. To which person does the draft statement relate?

2. The name(s) and address(es) of such person(s).

3. Particulars of the person(s) [See Section 2(i) for definition of a person

1.

2.

3.

4.

5.

6.

7.

4. Total extent of vacant land owned or held as tenant or possessed under a mortgage, etc.

5. Ceiling area applicable to the person to whom the statement relates.

6. Total extent of vacant land to which exemption under Section 19 applies.

7. Extent of vacant land exempted under Section 20.

8. Extent of vacant land the person concerned has been permitted to continue to hold under sub-section (1) of Section 21.

9. Extent of vacant land to be surrendered.

Part B

Particulars of all vacant lands, land with building, land with building proposed to be demolished and agricultural land owned or held as a tenant or possessed under mortgage or under an irrevocable power of attorney or under a hire purchase agreement or in any other capacity on the 17th February, 1975 by the person concerned-

Sl. No.

State

District

Taluk

Village

Survey No.

and sub-division No. other identification number given for revenue purposes.

Class of
land i.e. vacant land/land with building/agriculture land.
Extent in
hectares and square metres
How acquired
Approved
land use
Value of Rs.
P.
In the case
of building the nature of building (I) whether residential or
Group housing building (ii) Area occupied by the building and the
area allowed for convenient enjoyment of the building (iii)
whether single storeyed or multistoreyed.
Nature of
interest in the land of their person in respect of whom this
statement is prepared.
Names and
address of other persons claiming interest in the land so far as
may be known.
Views of the
Competent Authority after his enquiry.
Remarks.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16

Section I : Land held as owner.

Section II : Land held as tenant

Section III : Land held as mortgagee.

Section IV : Land held under an irrevocable power of attorney.

Section V : Land held under a hire purchase agreement.

Section VI : Land held in any other capacity.

Section VII : The right or interest of the person in land held by any firm or unincorporated association of individuals on the basis of his share in such firm or association of individuals and the particulars of land held by such firm or association of individuals.

Section VIII : Share of the person in the land held by a private trust, if he is a beneficiary of the private trust and his income from the private trust and the particulars of land held by the private trust.

Section IX : Share of the person in the land held by a Hindu undivided family, if he is a member of the Hindu undivided

family and the particulars of the land held by the Hindu undivided family.

Section X : Share of the person in the land held by a housing co-operative society and the particulars of land held by the housing co-operative society.

Note:- (1) The particulars should be furnished under different sections as shown above.

(2)

If the land for which particulars are furnished is not a registered sub-division, boundaries of it for easy identification should be mentioned against each Serial No. in the remarks column.

(3)

A plan showing the location of the land should be furnished.

(4)

Attested copies of documents proving the title to the land should be attached.

Part C

Details of the total extent (in hectares and square metres) of lands (including lands exempt under Section 19 and lands transferred by the person concerned after 17-2-1975 and in respect of which the transfer is treated as invalid under Section 4(4) (a) owned, or held as tenant or possessed under a mortgage etc. as provisionally assessed for the purpose of determining the extent of land to be surrendered

State

Taluk

Village

Survey

No. and sub-division No. or other identification number given for revenue purposes

Extent

(in hectares and square metres) and description sufficient to identify (where in respect of any land any voluntary transfer is treated as invalid land any voluntary transfer is treated as invalid under Section 4(4)(a) the name of the registry and the year and number of the document effecting such transfer should be specified and the words "Invalid under Section 4(4) (a)" noted against such description)

1

2

3

4

5

Part D

Details of vacant lands which the person concerned desires to retain

State

Taluk

Village

Survey

No. and sub-division No. or other identification number given for revenue purposes

Extent

(in hectares and square metres) with No. or other identification number description sufficient to identify the land

1

2

3

4

5

Part E

Details of land eligible for exemption under Section 19 and lands exempted.

State

Taluk

Village

Survey

No. and sub-division No. or other identification for number given
for revenue exemption purposes

Extent

(in hectares and square metres) with description sufficient to
identify the land

Reasons

for exemption

1

2

3

4

5

6

Part F

Particulars of the extent (in hectares and square metres) and identity of the lands to be surrendered (as provisionally
assessed)

State

Taluk

Village

Survey

No. and sub-division No. or other identification for number given
for revenue exemption purposes

Extent

(in hectares and square metres) with description sufficient to
identify the lands

Name

of other persons if any claiming interest in the lands

1

2

3

4

5

6

Place:

Date:

Designation and signature of the competent authority.

FORM IV

(To be furnished in triplicate)

(See Rule 8)

(Statement by person acquiring vacant land on or after the commencement of the Act)

1. Name and address of the person making the statement.

2. Whether vacant land acquired by

(a)

inheritance, or

(b)

settlement, or

(c)

bequest from any other person, or

(d)

sale in execution of a decree, or

(e)

order of a civil court, or

(f)

order of an award, or

(g)

order of any other authority.

(Strike out whichever is inapplicable)

3. Extent of acquisition:

(i)

Vacant land

(ii)

Land with building

4. Date of acquisition:

5. Acquired from whom?

(i)

Name

(ii)

Address

6. Particulars of vacant lands already held:

(If a statement under Section 6(1) had been filed a certified copy of the same may please be attached. If such vacant lands are not covered by a statement under Section 6(1) the particulars may be furnished as in Form I).

7. By how much the aggregate exceed the ceiling limit:

8. Specify the vacant land within ceiling limit desired to be retained:

Note: (1) A plan showing the vacant land/land with building acquired along with its boundaries should be enclosed.

(2)

Attested copies of documents in support of the acquisition should be enclosed.

DECLARATION

I.....son/daughter of.....hereby do solemnly declare and affirm that the particulars furnished above and in Form I attached herewith are true to the best of my knowledge and belief.

Place:

Date:

Signature of the vacant land holder.

FORM V

(To be furnished in triplicate)

(See rule 11)

DECLARATION UNDER SECTION 20(1)

1. Name of the holder of vacant land and full address, in block letters.

2. Description of vacant land proposed to be utilised for the construction of dwelling units for the accommodation of weaker sections of society.

(i)

State

(ii)

District

(iii)

Taluk

(iv)

Village or town

(v)

Survey No. and sub-division No. or other identification number given for revenue purposes.

(vi)

Boundaries of the land-

East:

West:

Sought:

North:

Note: - A plan of the vacant land proposed to be utilised, drawn to scale, showing the location of the vacant land, its boundaries and the lands immediately adjoining shall be attached to the declaration duly signed.

3. Approved use of the land referred to above as per Master Plan or Government Orders.

4. Details of the scheme for the construction of dwelling units:-

(i)

What is the total cost of the scheme;

(ii)

How is it proposed to finance the scheme;

(iii)

Is the proposed housing scheme in respect of persons whose income does not exceed Rs.7,200/- per annum?

(iv)

Is the proposed housing scheme in accordance with the following guidelines?.

(a)

Plinth area of dwelling units should not exceed sixty square metres in case they are to be constructed in urban agglomerations of category A and B.

(b)

Plinth area of dwelling units should not exceed eighty square metres in case they are to be constructed in urban agglomerations of category C and D

(c)

Cost of construction should not exceed Rs.18,000/- per dwelling unit.

(d)

Has the plan and design of the scheme been approved by the local authority?

FORM VII

(To be furnished in triplicate)

(See Rule 13)

Applications For Assignment Of Vacant Land Under Sub-Section (1) Of Section 24

1. Name of applicant:

2. Vacant land/land with building already held by him.

State

District

Taluk

Village

Survey No.

and Sub-division No. other identification number given for revenue purposes

Extent in

hectares and square metres

How

acquired

Approved

land use

Value Rs.

Remarks

1
2
3
4
5
6
7
8
9
10

(A)

Vacant lands held as owner (Please indicate in column (10) the nature of right, title or interest clearly).

(B)

Vacant land held as a mortgagee.

(C)

Vacant lands held under an irrevocable power of attorney.

(D)

Vacant lands leased out to tenants. (Please indicate to whom the land has been leased out and his address).

(E)

Vacant lands held as tenant under a lease agreement (where the period of lease exceeds ten years).

(F)

Lands with building. (Please indicate the area of building, open space for the convenient enjoyment of the building, allowed for the building as per building regulations). Please also indicate whether the building is single or multi-storied and is Group Housing Building.

(G)

Vacant land/land with building transferred after the 17th day of February, 1975.

(i)

Name and address of the transferee.

(ii)

Date of transfer.

(iii)

Particulars of the land/land with building transferred.

Note:- Attested copies of documents evidencing the transfer should be enclosed.

3. Vacant land acquired by State Government.

4. Particulars of vacant land which is equal to or less than the ceiling limit and which the applicant wishes to be assigned to him.

I declare that the particulars given above are correct to the best of knowledge and belief.

I request that the vacant land referred to against Item 4 above be assigned to me under sub-section (2) of Section 24.

Place

Date.....

Signature of the applicant.

FORM VIII

(To be furnished in triplicate)

(See Rule 14)

Application Under Sub-Section (2) Of Section 27 For Permission For Transfer Of Urban Property

Ison/wife/widow of.....do hereby declare that the urban/urbanisable land with a building/or a portion only of such building described in the annexure hereto attached, held by me, is intended to be transferred by me by sale/mortgage/gift/lease for a period exceeding ten years to (give the particulars of the prospective transferee)The building was constructed on.....

2. I request that the permission of the competent authority under sub-section (2) of Section 27 of the Urban Land

(Ceiling and Regulation) Act, 1976 (
33 of 1976

) be granted to me for the aforesaid transfer.

3. I enclose a statement from the prospective transferee containing particulars of the urban property held by him.

Place:

Date.

Signature of transferor

ANNEXURE

1. Name of the holder of urban or urbanisable land with a building or a portion only of such building making the application

2. Date of construction of building (whether constructed before the commencement of the Act).

3. Manner of transfer (whether by way of sale, mortgage, gift, lease for a period exceeding ten years or otherwise).

4. Name and address of the transferee.

5. Description of the urban property proposed to be transferred:

(a)

Revenue Survey number

(b)

Town Planning Scheme number

(c)

Block number

(d)

Ward number

(e)

Plot number

(f)

Municipal number

6. Area of the urban property proposed to be transferred (in words and figures) Signature of transferor.

Note:-1. A site plan drawn to scale is appended showing the location of the vacant land together with its boundaries clearly marked, indicating further whether lands appurtenant to and surrounding the said vacant lands were vacant or built upon or not after 17-2-1975.

2. A copy of the document to be executed in regard to the transfer is enclosed. Signature of the transferor.

STATEMENT

I.....son ofresiding at.....do hereby declare that I do not hold any urban or urbanisable land with a building/hold urban or urbanisable land with building as mentioned below:

Particulars of vacant land:

State

District

Taluk

Survey No.

and sub-division No. or other identification No. given for revenue purposes

Extent in

hectares and square metres

Urban or

urbanisable land with/without building

Form of

ownership

I have entered into an agreement for the transfer of the urban property described in the Annexure byto me in the manner indicated therein. I propose to utilise the land for the purpose of

Signature of transferee.

Place:

Date:

THE SECOND SCHEDULE

Court fee stamp, which applications, appeals and other proceedings under the Act should bear (see rule 16)

Provisions

under which the applicable appeal or other proceeding is filed

Description

of the application appeal or other proceeding

Proper

fee

1

2

3

Section 12(4)

Appeal to the Tribunal against an order of the competent authority under Section II.

Rs. 25

Section 19(1)

An application for exemption of vacant land under clause (iv), (vi) and (x) of sub section (1) of Section 19.

Rs. 10

Section 20

Application for exemption of vacant land.

Rs. 10

Section 21(1)

Declaration by a person holding excess vacant land that such land is to be utilised for construction of dwelling units for the accommodation of the weaker sections of the society to enable such person to be permitted to continue to hold such land.

Rs. 10

Section 23(1)

Application for allotment of vacant land in excess of the ceiling limits for industry etc.

Rs. 10

Section 24(1)

Application for assignment of vacant land.

Rs. 10

Section 27(1)

Application for permission to transfer urban property.

Rs. 10

Section 30(2)

Appeal to the Tribunal against an order for demolition.

Rs. 25

Section 33

Appeal against any order of the competent authority, not being an order under Section or Section 30(1) .

Rs. 25

Rule 15

Application for copy of any document.

Re. 1

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Translation